Adam Brumage, Bar No.283180
Chinyere A. Abuka, Bar No. 303286
Matthew W. Keim, Bar No. 331020
Karlie D. Schafer, Bar No. 331884
Chan Hsu, Bar No. 334555
Nicholas Morello, Bar No. 337656
John Phan, Bar No. 338677
Linda Doan, Bar No. 343453
Jason Burrows, Bar No. 309882
Christine Sidugen, Bar No. 240380
Harvey Moore, Bar No. 101128
Jeremy LaForge, Bar No. 350818
The Moore Law Group, A Professional Corporation
3710 S. Susan St, Suite 210, Santa Ana, CA 92704
P.O.Box 25145, Santa Ana, CA 92799-5145
Telephone: (800) 506-2652
Email: CALit@collectmoore.com
Attorneys for Plaintiff,
JPMorgan Chase Bank, N.A.
CA DFPI Debt Collector License Number 10223-99

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
01/28/2025
Clerk of the Court
BY: NADITA MASON
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA, COUNTY OF SAN FRANCISCO
CIVIC CENTER COURTHOUSE, LIMITED JURISDICTION

JPMorgan Chase Bank, N.A., Plaintiff, vs. MERCEDES M TAYLOR; Defendant(s).	CASE NO. CGC-24-614481 DECLARATION RE NON-ACTIVE MILITARY STATUS

The undersigned declares as follows:

1. I am an attorney licensed to practice law in the state of California and am an associate attorney of The Moore Law Group, A Professional Corporation, counsel for Plaintiff in this matter. The facts contained in this declaration are based upon my review of the books and records of The Moore Law Group, A Professional Corporation, maintained in connection with this case.

2. Our office made inquiries and other efforts to determine whether Defendant is entitled to the protection of the Service members Civil Relief Act. Based on the response received from the United States Department of Defense Manpower Data Center, the Defendant is not on "active duty" status, as such term is used in the Service members Civil Relief Act. A copy of the Report of the Department of Defense Manpower Data Center is attached hereto as **Exhibit 1**.

///

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Dated: DEC 1 1 2024

The Moore Law Group, A Professional Corporation

By: _____

Harvey Moore___ Matthew Keim___ Angela Dawson___ Christine Siduguen___ Jason Burrows___ Chan Hsu___ Nicholas Morello___ John Phan___ Linda Doan___ Chinyere A. Abuka___ Jeremy LaForge___ Jeff Ananias___

Attorneys for Plaintiff

EXHIBIT 1

(SCRA Certificate)

Department of Defense Manpower Data Center

Results as of : Dec-11-2024 12:47:14 PM EST

SCRA 5.23

Status Report
Pursuant to Servicemembers Civil Relief Act

SSN: [redacted]
Birth Date: [redacted]
Last Name: TAYLOR
First Name: MERCEDES
Middle Name: M
Status As Of: Dec-11-2024
Certificate ID: 7N96ZTSJW157M1W

On Active Duty On Active Duty Status Date			
Active Duty Start Date	Active Duty End Date	Status	Service Component
NA	NA	No	NA
This response reflects the individuals' active duty status based on the Active Duty Status Date			

Left Active Duty Within 367 Days of Active Duty Status Date			
Active Duty Start Date	Active Duty End Date	Status	Service Component
NA	NA	No	NA
This response reflects where the individual left active duty status within 367 days preceding the Active Duty Status Date			

The Member or His/Her Unit Was Notified of a Future Call-Up to Active Duty on Active Duty Status Date			
Order Notification Start Date	Order Notification End Date	Status	Service Component
NA	NA	No	NA
This response reflects whether the individual or his/her unit has received early notification to report for active duty			

Upon searching the data banks of the Department of Defense Manpower Data Center, based on the information that you provided, the above is the status of the individual on the active duty status date as to all branches of the Uniformed Services (Army, Navy, Marine Corps, Air Force, Space Force, NOAA, Public Health, and Coast Guard). This status includes information on a Servicemember or his/her unit receiving notification of future orders to report for Active Duty.

Sam Yousefzadeh

Sam Yousefzadeh, Director
Department of Defense - Manpower Data Center
4800 Mark Center Drive, Suite 04E25
Alexandria, VA 22350

The Defense Manpower Data Center (DMDC) is an organization of the Department of Defense (DoD) that maintains the Defense Enrollment and Eligibility Reporting System (DEERS) database which is the official source of data on eligibility for military medical care and other eligibility systems.

The DoD strongly supports the enforcement of the Servicemembers Civil Relief Act (50 USC App. § 3901 et seq, as amended) (SCRA) (formerly known as the Soldiers' and Sailors' Civil Relief Act of 1940). DMDC has issued hundreds of thousands of "does not possess any information indicating that the individual is currently on active duty" responses, and has experienced only a small error rate. In the event the individual referenced above, or any family member, friend, or representative asserts in any manner that the individual was on active duty for the active duty status date, or is otherwise entitled to the protections of the SCRA, you are strongly encouraged to obtain further verification of the person's status by contacting that person's Service. Service contact information can be found on the SCRA website's FAQ page (Q35) via this URL: https://scra.dmdc.osd.mil/scra/#/faqs. If you have evidence the person was on active duty for the active duty status date and you fail to obtain this additional Service verification, punitive provisions of the SCRA may be invoked against you. See 50 USC App. § 3921(c).

This response reflects the following information: (1) The individual's Active Duty status on the Active Duty Status Date (2) Whether the individual left Active Duty status within 367 days preceding the Active Duty Status Date (3) Whether the individual or his/her unit received early notification to report for active duty on the Active Duty Status Date.

More information on "Active Duty Status"

Active duty status as reported in this certificate is defined in accordance with 10 USC § 101(d) (1). Prior to 2010 only some of the active duty periods less than 30 consecutive days in length were available. In the case of a member of the National Guard, this includes service under a call to active service authorized by the President or the Secretary of Defense under 32 USC § 502(f) for purposes of responding to a national emergency declared by the President and supported by Federal funds. All Active Guard Reserve (AGR) members must be assigned against an authorized mobilization position in the unit they support. This includes Navy Training and Administration of the Reserves (TARs), Marine Corps Active Reserve (ARs) and Coast Guard Reserve Program Administrator (RPAs). Active Duty status also applies to a Uniformed Service member who is an active duty commissioned officer of the U.S. Public Health Service or the National Oceanic and Atmospheric Administration (NOAA Commissioned Corps).

Coverage Under the SCRA is Broader in Some Cases

Coverage under the SCRA is broader in some cases and includes some categories of persons on active duty for purposes of the SCRA who would not be reported as on Active Duty under this certificate. SCRA protections are for Title 10 and Title 14 active duty records for all the Uniformed Services periods. Title 32 periods of Active Duty are not covered by SCRA, as defined in accordance with 10 USC § 101(d)(1).

Many times orders are amended to extend the period of active duty, which would extend SCRA protections. Persons seeking to rely on this website certification should check to make sure the orders on which SCRA protections are based have not been amended to extend the inclusive dates of service. Furthermore, some protections of the SCRA may extend to persons who have received orders to report for active duty or to be inducted, but who have not actually begun active duty or actually reported for induction. The Last Date on Active Duty entry is important because a number of protections of the SCRA extend beyond the last dates of active duty.

Those who could rely on this certificate are urged to seek qualified legal counsel to ensure that all rights guaranteed to Service members under the SCRA are protected

WARNING: This certificate was provided based on a last name, SSN/date of birth, and active duty status date provided by the requester. Providing erroneous information will cause an erroneous certificate to be provided.